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JAN 20 2015

Federal Maritime Commission
Office of the Secretary

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 14 -10

ECONOCARIBE CONSOLIDATORS, INC.

COMPLAINANT

V.

AMOY INTERNATIONAL, LLC.

RESPONDENT

**RESPONDENT'S REQUEST FOR JUDICIAL NOTICE OF FBI PRESS
RELEASE DATED MAY 13, 2013**

Pursuant to Federal Rule of Evidence 201. Respondent Amoy International, Inc., requests that the Commission take judicial notice of the press release issued by the Federal Bureau of Investigation on May 13, 2013, and attached hereto as Exhibit "31." Press releases are a proper subject for judicial

ORIGINAL

notice. In re Pererine Systems, Inc. Securities Litigation, 310 Fed.Appx. 149 (9th
Cir. 2009); Alabama Aircraft v. U.S., 82 Fed.Cl. 757, 765 (Fed.Cl. 2008).

Respectfully submitted,

Dated: January 19, 2015

RUSSELL, MIRKOVICH & MORROW

By:



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Attorneys for Respondent
AMOY INTERNATIONAL LLC.

EXHIBIT 31



Chicago Division

Home - Chicago - Press Releases - 2013 - Cary Business Owner Pleads Guilty to \$1 Million International Fraud Scheme

Cary Business Owner Pleads Guilty to \$1 Million International Fraud Scheme

U.S. Attorney's Office
May 13, 2013

Northern District of Illinois
(312) 353-5300

ROCKFORD—A Cary, Illinois business owner, pleaded guilty to wire fraud today in federal court before U.S. District Judge Frederick J. Kapala. Cary Thomas Anderson, 47, who owned and operated multiple businesses in Cary, Illinois, and Florida, admitted that between April 2009 and January 2013, he schemed to defraud more than \$1 million from more than 10 victims that did business with the companies he operated.

According to the written plea agreement, the businesses Anderson owned and operated were Certifibre LLC; Anderson International Global LLC, which had an assumed name of Worldwide Paper Company Inc.; American Supplus Supply; Southernmost Exports LLC; Southernmost Holdings LTD; and Sea Consulting LLC. Through these businesses, Anderson contracted to sell wood pulp and other raw materials to manufacturers, brokers, and suppliers, which were usually located in foreign countries.

Anderson obtained payments from his customers before the shipments arrived at their destinations. Often, the customers obtained Letters of Credit from their banks in order to pay for the shipments in advance. Anderson admitted that he caused payments to be disbursed under these Letters of Credit to bank accounts he controlled by creating and presenting fraudulent Bills of Lading, Certificates of Origin, and packing lists. These documents falsely represented that the agreed upon quantity and quality of materials had been shipped.

Anderson admitted that instead of shipping the wood pulp or other raw materials he had agreed to sell on various occasions he shipped worthless scrap materials to his foreign customers. When the customers called him to complain about the worthless scrap materials they had received, Anderson falsely told them that the scrap materials were intended for another customer in a different country.

Anderson further admitted that on some occasions, instead of shipping the agreed upon weights and volume of wood pulp or other raw materials, he instead shipped substantially smaller amounts of wood pulp or other raw materials. When the customers called and complained about the short shipments, Anderson falsely told them that short shipments were caused by clerical errors.

Anderson acknowledged that, in order to maximize the profits from his scheme to defraud, he often failed to pay for the materials he obtained and for the freight shipping charges. Anderson also admitted that he spent the funds that his customers sent to him on his own personal expenses.

As he acknowledged in the plea agreement, on a few occasions, Anderson refunded some money to his victims in order to avoid detection of his scheme. Anderson paid these refunds only after the victims contacted, or threatened to contact, federal law enforcement officials. Anderson admitted that he obtained the funds used to pay these refunds by defrauding additional customers.

Anderson is scheduled to be sentenced on August 22, 2013, at 2:30 p.m. Wire fraud carries a maximum penalty of up to 20 years in prison, a term of up to three years of supervised release following imprisonment, a \$250,000 fine, and mandatory restitution. The court may also impose a fine totaling twice the loss to any victim or twice the gain to the defendant, whichever is greater. The actual sentence will be determined by the United States District Court, guided by the advisory United States Sentencing Guidelines.

The guilty plea was announced by Gary S. Shapiro, United States Attorney for the Northern District of Illinois, and Cory H. Nelson, Special Agent in Charge of the Chicago Office of the Federal Bureau of Investigation.

The government is being represented by Assistant U.S. Attorney Scott A. Vorseman.

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CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing **RESPONDENT'S**
REQUEST FOR JUDICIAL NOTICE OF FBI PRESS RELEASE DATED
MAY 13, 2013 was sent to the below-mentioned counsel via email on January 19,
2015.

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